UNITED STATES BANKRUPTCY COURT
WESTERN DISTRICT OF WISCONSIN

In re: EXAMPLE DEBTOR Case No. 00-00000 Chapter 7 EXAMPLE DEBTOR, Plaintiff, v. EXAMPLE LENDING, LLC, Defendant.	**Adversary Case No.** _____

DEFENDANT'S MOTION TO DISMISS AND BRIEF IN SUPPORT

RELIEF REQUESTED

Defendant Example Lending, LLC moves the Court to dismiss the complaint in its entirety under Fed. R. Civ. P. 12(b)(6), made applicable by Fed. R. Bankr. P. 7012(b), and asks the Court to grant the dismissal with prejudice.

GROUNDS

1. The complaint does not allege facts that, accepted as true, state a claim to relief that is plausible on its face.
2. Each count rests on a conclusion of law that the complaint does not support with facts.
3. Because no claim survives, the Court should dismiss the complaint without leave to amend.

BRIEF IN SUPPORT

Introduction

This brief supports the motion described above. The complaint asks the Court to find a lien invalid. The facts that would make that finding possible are not alleged.

Background

The complaint alleges the following. The debtor filed a petition under Chapter 7 of the Bankruptcy Code. The defendant holds a claim against the debtor's property. The complaint does not allege the document on which the claim rests, or the date on which the claim was recorded.

Argument

The complaint does not state a plausible claim

A complaint must contain enough factual matter, accepted as true, to state a claim to relief that is plausible on its face. The Court does not accept legal conclusions as true. The complaint's allegations about the claimed lien are conclusions of that kind.

Leave to amend would be futile

The defects are in the facts the complaint does not allege, and the plaintiff has not identified any fact that would cure them.

Conclusion

For these reasons, the Court should grant the motion and dismiss the complaint.

Dated this 1st day of January, 2000.

EXAMPLE LAW OFFICES

Respectfully submitted,

/s/ _____

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